

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 21, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 26CV01438

NORES v. WILKERSON, et al.

PLAINTIFF NORES’ MOTION TO APPOINT DEFENDANTS’ SUCCESSOR IN INTEREST

Plaintiff’s motion is denied without prejudice. Plaintiff has not carried her burden to establish that either other defendant (Lin Holliday or Roderick Wilkerson) is a beneficiary of or heir to the decedent’s estate and is properly a successor in interest, as required by Code of Civil Procedure sections 377.40 and 377.41. To the extent plaintiff intends to re-notice this motion, it shall not be set prior to defendants’ pending demurrers and motions to strike (set on November 16, 2026).

No. 25CV00933

ETHEM v. LEFF

OPPOSITION TO CLAIM OF EXEMPTION

Parties are to appear and be prepared to provide all information related to the debt and the defendant’s financial condition to the court.

The court grants defendant’s requests for judicial notice of Exhibits 1 through 11.

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No. 25CV03379

PORTER et al. v. PAJARO VALLEY HEALTHCARE DISTRICT HOSPITAL CORP.

DEFENDANT’S DEMURRER

The demurrer is overruled. Defendant is ordered to file an answer no later than October 23, 2026.

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at p. 747.)

Plaintiffs are patients of defendant hospital medical group and their personally identifiable information (“PII”) and personal health information (“PHI”) were obtained by the ransomware group Termite in a November 2024 cyberattack and leaked until July 2025; a second group, Sinobi, took 13 gigabytes in August 2025 and leaked that as well. (Consolidated Amended Complaint (“CAC”) ¶¶ 18-21.) Defendant never publicly acknowledged the second breach, and it waited until October 15, 2025 to tell patients that their PII and PHI were in the stolen files. (CAC ¶¶ 5, 21, 55, 62.) Plaintiffs include four patients – Sarinah Porter, Karen Barton, Jessica Chipres, and Phil Reader, and they seek to represent other potential plaintiffs in a class. (CAC ¶¶ 98-105.) Plaintiffs allege ten causes of action for negligence, violation of the California Confidentiality of Medical Information Act, violation of the California Consumer Records Act, unfair competition, breach of contract, breach of implied contract, unjust enrichment, breach of fiduciary duty, breach of confidence and violation of the California Consumer Privacy Act.

Plaintiffs plead actual harm – economic and non-economic -- as a result of these breaches: Plaintiff Porter applied for credit and was told her Social Security number was invalid, two fraudulent credit card purchases were made, and her spam calls and emails increased. (CAC ¶¶ 53-56.) Plaintiff Barton received fraudulent invoices from providers she had never treated with and learned her PII and PHI was on the dark web, which she traces to the breach because it

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involves the same information she gave defendant. (CAC ¶¶ 62, 68-70.) Ms. Chipres and Mr. Reader plead on information and belief, because defendant has not disclosed either breach's scope. (CAC ¶¶ 74-75, 86-87.) All four allege lost time, anxiety, an increased risk of identity theft, and a continuing interest in data defendant still holds on systems "shown to be susceptible to compromise." (CAC ¶¶ 59-61, 72-73, 80-85, 92-97.)

Defendant demurs to each of the ten claims on the grounds they fail to state sufficient facts to support any cause of action. Defendant also argues plaintiffs lack standing. Based on the Court's review of the complaint, when read liberally and in context, plaintiffs' allegations are sufficient to support all claims and the demurrer is therefore overruled.

No. 26CV00447

SIMPSON v. DEBERT

DEFENDANT'S MOTION FOR RECONSIDERATION

The motion is denied.

I. BACKGROUND

Plaintiff Jeff Simpson's second amended complaint ("SAC"), filed April 20, 2026, alleges three causes of action against defendant Charlene DeBert – trespass, encroachment/nuisance, and quiet title. Both parties are self-represented. There is a neighbor dispute; plaintiff alleges that defendant built a fence that encroaches on his land, and trespassed onto his property across his driveway, gate area and leach field. Defendant has claimed ownership of these areas. Defendant has also allegedly resorted to yelling at plaintiff via a surveillance camera, which she later removed, resulting in at least one call for service from the Sheriff's Office.

Defendant argued in her demurrer and motion to strike that plaintiff's trespass cause of action fails because the boundary was not established until a survey, and defendant could not have trespassed on an unknown boundary. Much of her demurrer discussed the process of finding a missing boundary marker and relied on her declaration statements, none of which are found in the four corners of the SAC. She contended the second cause of action for nuisance fails for the same reasons and the entire SAC fails for uncertainty. Her motion to strike sought to strike all references to "visible monuments," punitive damages, emotional distress damages, "willful disregard," "intentional trespass," and defendant's refusal caused survey costs.

The court overruled the demurrer and denied the motion to strike. Defendant now moves for reconsideration on the grounds that the court overlooked Exhibit D to the SAC and its direct

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contradiction of complaint allegations. Defendant argues that the SAC alleges the shared boundary is clearly established by a straight line between visible monuments, but in Exhibit D plaintiff admits he could not locate the NE corner monument.

II. LEGAL STANDARDS

Within 10 days after service upon the party of written notice of entry of the order (extended for service) and based upon new or different facts, circumstances, or law, a party may make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. (Code Civ. Proc., §§ 1008, 1013.)¹

The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The burden under section 1008 “is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at [the hearing].” (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213.) A party seeking reconsideration based on new or different facts, circumstances, or law must provide a satisfactory explanation for not presenting it earlier. (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.)

III. DISCUSSION

Defendant has not shown any new or different facts, circumstances or law requiring reconsideration. The court’s previous ruling that much of the demurrer was based on information outside the four corners of the SAC stands. Defendant did not refer to Exhibit D of the SAC in her motion; instead, she attached the parties’ emails to her declaration, rendering them outside the complaint and failing to identify them as part of the complaint. Second, the fact that information in plaintiff’s 24-page exhibit of the parties’ correspondence about their boundary dispute showing he could not locate one boundary monument does not negate that the SAC sufficiently states causes of action for trespass, nuisance and quiet title. Third, defendant had every opportunity to raise this argument on reply to her demurrer and did not. Finally, the demurrer was also overruled due to defendant’s procedural defects – lack of service and failure to meet and confer.

Accordingly, this motion for reconsideration is denied.

¹ All future statutory references are to the Code of Civil Procedure, unless otherwise stated.

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No. 22CV02635

WILCOX v. MADURA

**(UNOPPOSED) DEFENDANTS' MOTION TO COMPEL RESPONSES TO
REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE; FORM
INTERROGATORIES, SET ONE; SPECIAL INTERROGATORIES, SET ONE;
TO ADMIT MATTERS SPECIFIED IN REQUEST FOR ADMISSIONS, SET
ONE; AND FOR TERMINATING AND MONETARY SANCTIONS**

The unopposed motion is granted, as discussed below.

This action is a business dispute between partners in two limited liability companies. Plaintiff Steven Wilcox brought this action for dissolution, damages, and accounting against defendants Karen Madura, Santa Cruz Taverns, LLC, and Seabright Taverns, LLC. Madura holds a 50% interest in Santa Cruz Taverns LLC and plaintiff holds the remaining 25% interest. Plaintiff and Madura each hold a 50% membership interest in Seabright Taverns, LLC.

On April 2, 2026, counsel for defendants served form and special interrogatories, set one; request for production of documents, set one; and request for admissions set one, on plaintiff through his counsel. (Decl. of Nelson at ¶3, Ex. B.) The due date came and went without responses. Counsel for defendants called and emailed plaintiff's counsel multiple times regarding the overdue discovery without receiving responses, necessitating this motion to compel. (Decl. of Nelson at ¶¶ 4-5.)

"If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. [Citation.]" (Weil & Brown *Civil Proc. Before Trial* (TRG 2026) §8:137.) Further, "[a]ll that need be shown in the moving papers is that a set of interrogatories was properly served on opposing party, that the time to respond has expired, and that no responses of any kind has been served." (Weil & Brown *Civ. Pro. Before Trial* (TRG 2026) §8:1140; Code Civ. Pro. § 2030.290, subd. (b).) "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2030.290, subd. (c).)

"Where there has been no timely response to a CCP §2031.010 demand, the first thing the demanding party must do is to seek an ordering compelling a response. [CCP §2031.300]." (Weil Brown *Civil Procedure Before Trial* (TRG 2026) § 8:1483.) Failure to respond timely waives all objections. "If a motion to compel responses is filed and a party properly asks for

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monetary sanctions, the court ‘shall’ impose a monetary sanction against the losing party *unless* it finds that party made or opposed the motion ‘with substantial justification’ or other reasons make the sanction ‘unjust.’” (Weil & Brown *Civ. Pro. Before Trial* (TRG 2026) § 8:1488.)

If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2023.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Therefore, the matters specified in requests for admission, set one (Exhibit A to Decl. of Nelson) are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless plaintiff serves, before the hearing on the motion, a proposed response to the requests for admission that are in substantial compliance with Code of Civil Procedure section 2033.220. Additionally, plaintiff is ordered to serve verified, code-compliant responses, without objections, to the remaining discovery requests attached as Exhibit A to the declaration of Nelson [special and form interrogatories, set one and requests for production of documents, set one]. Those responses are to be served within 20 days from the date of this hearing.

Defendants request sanctions in the amount of \$7,125.00, jointly against plaintiff and his counsel. Defendants’ counsel states that he spent 15.7 hours preparing the motion at a rate of \$450.00/hour (\$7,065.00) plus they seek \$60.00 in filing fees. Failure to respond to discovery requests without substantial justification is a misuse of the discovery process. (Code Civ. Proc. § 2023.010, subd. (d).) This motion is relatively simple and is unopposed, so there is no reply to prepare; the Court finds the request for 15.7 hours of time to be excessive. The Court awards 5 hours of time or \$2,250.00 jointly against plaintiff and his counsel. “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030, subd. (a).) These sanctions are to be paid within 30 days from the date of this hearing.